

that defending the validity of an underlying judgment (via opposing a motion to set aside default and vacate default judgment) constitutes post-judgment enforcement.

Plaintiff has failed to provide any legal support for its request for costs. Because the Court expressly did not award costs in its order, the Plaintiff's request is denied for costs in full.

**2.**

| CASE #      | CASE NAME                                      | HEARING NAME                      |
|-------------|------------------------------------------------|-----------------------------------|
| CVRI2505836 | MILLER vs CORONA-NORCO UNIFIED SCHOOL DISTRICT | DEMURRER ON 2ND AMENDED COMPLAINT |

**Tentative Ruling:**

**Summary of Ruling:**

The Court grants motion to redact minor child's identifying information.

The Court sustains the demurrer with 30 days leave to amend.

**Factual / Procedural Context:**

Plaintiff Cindy Miller contends that on 7/9/25, another student pushed Plaintiff's minor child, C.M., causing her to fall and strike her head on a classroom wobble stool. Defendant failed to notify Plaintiff or refer the child for a medical evaluation. Plaintiff expressly disclaims that she is asserting causes of action on behalf of CM. The operative pleading is the Second Amended Complaint (SAC) filed on 5/5/26 for general negligence.

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Plaintiff moves to redact any identifying information of CM, since CM is not a named party.

Defendant does not oppose the redaction, but complains about the lack of timely notice of the motion.

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Defendant demurs to the negligence claim on the grounds it fails to state facts sufficient and is uncertain. Defendant argues that Plaintiff cites to state a statutory basis for liability. It argues that Government Code section 815 precludes any liability. It contends that the SAC is uncertain because she asserts she is not bringing a claim on behalf of CM, but bases the claim on injuries suffered by CM and the duties owed to CM.

In opposition, Plaintiff contends that Defendant failed to notify Plaintiff of her child's injury, failed to provide accurate information regarding the incident, failed to preserve evidence, failed to provide records request, and negligently handled her complaints. She contends the complaint is not uncertain because of this. She argues that she was not notified of the injury and deprived of information to make prompt medical decisions. She contends Government Code section 820 provides liability.

In reply, Defendant contends Education Code section 44807 provides a duty owed to the student, not parents.

## **Analysis**

### **I. Motion to Redact Info**

Plaintiff is not seeking to proceed anonymously—just her minor child. As the minor child is not a party to the action, there is no requirement for Plaintiff to file as a doe plaintiff. (See *Doe v. Lincoln Unified School District* (2010) 188 Cal.App.4th 758, 767 [allowing plaintiff to sue as a Doe under certain circumstances]; *Department of Fair Employment & Housing v. Superior Court* (2022) 82 Cal.App.5th 105, 111-112 [allowing pseudonym should occur in rare circumstances].) Because the Defendant does not oppose the motion, and Plaintiff is not seeking a pseudonym for herself, the motion is granted.

### **II. Demurrer**

#### **A. Meet & Confer**

Code of Civil Procedure sections 430.41 and 435.5 requires a meet and confer process via **phone, videoconference or in person** before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (*Id.* at §§ 430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* at §§ 430.41(a)(3), 435.5(a)(3).) Defendant complied. (Lechman Decl. ¶5.)

#### **B. Merits**

A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

“Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions.” (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.) Unless provided by statute, a public entity is not liable for an injury. (Govt. Code § 815(a).)

There is no common law tort liability for public entities—only statutory. (*Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442.) To state a cause of action against a government entity, every fact essential to the existence of statutory liability must be pled with particularity. (See *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his or her employment if the act or omission would have given rise to a cause of action against the employee, unless the employee is immune. (Gov. Code, § 815.2.) “[A] public employee is liable for the injuries caused by his act or omission to the same extent as a private person.” (*Id.* at § 820(a).)

The problem, here, is that there are no allegations of duty owed to Plaintiff, rather than her minor child. The SAC cites to Education Code section 44807. Section 44807 provides in pertinent part: “Every teacher in the public schools shall hold pupils to a strict account for their conduct on the way to and from school, on the playgrounds, or during recess.” As stated in *Dailey v. Los Angeles Unified School District* (1970) 2 Cal.3d 741, 474:

While school districts and their employees have never been considered insurers of the physical safety of students, California law has long imposed on school authorities a duty to “supervise at all times the conduct of the children on the school grounds and to enforce those rules and regulations necessary to their protection. [Citations.]” [Citations.] The standard of care imposed upon school personnel in carrying out this duty to supervise is identical to that required in the performance of their other duties. This uniform standard to which they are held is that degree of care “which a person of ordinary prudence, charged with [comparable] duties, would exercise under the same circumstances.” [Citations.] Either a total lack of supervision [citation] or ineffective supervision [citation] may constitute a lack of ordinary care on the part of those responsible for student supervision. Under section 815.2, subdivision (a) of the Government Code, a school district is vicariously liable for injuries proximately caused by such negligence.

Nothing in section 44807 imposes a duty to the parents of a student.

In opposition, Plaintiff raises new theories not pled, mainly spoliation of evidence. There is no cause of action for negligent spoliation of evidence. (*Leuter v. State of California* (2002) 94 Cal.App.4th 1285, 1299.)

As Plaintiff has failed to state facts regarding a duty owed to her directly, the court sustains the demurrer with leave to amend.